STANDARD OPERATING PROCEDURE			CS-5300	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 04/01/07	DATE REVISED **01/23/25**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE COURT SERVICES	RESOURCES N.R.S. 60-1903 AND 60-6165			
SUBJECT VEHICLE IMPOUND FACILITY	CROSS REFERENCE P-3600 VEHICLE TOWING PROCEDURES			

I. Purpose:

The purpose of this policy is to establish procedures for the Sarpy County Vehicle Impound Facility (Impound Lot).

II. Policy:

The Sarpy County Sheriff's Office Vehicle Impound Facility provides the Sheriff's Office and other agencies a safe and effective storage facility for all vehicles and personal property. The Vehicle Impound Facility receives vehicles towed by the Sheriff's Office, La Vista Police Department, Papillion Police Department, Nebraska State Patrol and other approved agencies. The vehicle impound facility stores vehicles until they are released to owners, lien holders, or if abandoned at the impound facility, offered for public auction, or sold, in accordance with Nebraska State Statute 60-1903.

III. Procedures:

A. Hours of Operation: The Impound Facility hours of operation are from 0830 hours to 1630 hours Monday through Friday. The Impound Facility is closed on Saturdays, Sundays and holidays.

B. Staffing: The Sarpy County Impound Facility shall be staffed by Towed Vehicle Inspectors under the supervision of the Desk Sergeant. The Desk Sergeant shall ensure there is staffing Monday through Friday, 0830 to 1630.

C. Towed Vehicle Inspectors' Responsibilities: The towed vehicle inspectors shall be responsible for the following:

1. Complete a daily inspection of the facility gate and fencing for damage. Any damage shall be immediately reported to the Desk Sergeant.

2. Review Tow/Impound forms.

3. Receive and release vehicles.

4. Work with Vehicle Title Inspectors to verify VIN numbers and initiate proper notification of owners and lien holders that their vehicle has been impounded.

5. Check key card entries on the computer and compare entries to Tow/Impound forms.

6. Prepare vehicles for auction that have been titled to the Sheriff's Office.

7. Conduct cleaning of the tow lot building, as needed.

8. Work with tow companies to ensure proper placement of towed vehicles and collection of documents related to tows.

D. Towed Vehicles:

1. Only approved tow companies may impound vehicles at the Sarpy County tow lot twenty-four (24) hours a day, seven days a week. The Assistant Court Services Commander shall maintain a current list of approved companies. Other tow companies must be admitted by a Towed Vehicle Inspector or deputy.

2. Each approved tow company shall be issued a "key card" to operate the gate at the tow lot. Each "key card" issued to the tow companies shall be entered on the computer for tracking purposes. The computer shall track the date and time the tow truck operator(s) enter and exit the lot.

3. Tow truck operators shall place the impounded vehicle(s) at the tow lot, in rows designated by tow lot staff.

4. Tow companies shall provide a Towed Vehicle Inspector with a tow bill for each towed vehicle, itemizing each service provided and the keys for the vehicle, if available. If the tow occurs after hours, the bill and keys shall be placed in the drop box.

5. Once a Towed Vehicle Inspector has received paperwork on an impounded vehicle, he or she shall:

a) Make copies of the Tow/Impound form and tow bill and place the copies in the "billing" file.

b) Tag the keys with the agency's case number and type of vehicle.

c) Mark the impounded vehicle's windshield with the agency, case number, and the date the vehicle was impounded.

d) Place the original paperwork in the working: file with the Tow/Impound form in descending order by date.

e) Check TrACS for any vehicle holds.

f) The Towed Vehicle Inspector shall ensure the information contained on the Tow/Impound form is accurate by comparing the form to the vehicle itself.

E. **Vehicle Release Procedures:** The Towed Vehicle Inspectors shall adhere to the following procedures when releasing a vehicle:

1. No vehicle may be released without checking the Tow/Impound form for "HOLDS."

2. A vehicle may not be released with a "HOLD" unless authorization is obtained from the agency that placed the hold on the vehicle.

a) Authorized releases can be in the form of a fax, e-mail, or delivered in person.

b) The only exception is when a command officer gives verbal direction to release a vehicle. If given verbal direction from a command officer to release a vehicle, the Towed Vehicle Inspector shall log on the Tow/Impound form who directed him or her to release the vehicle by noting "Vehicle Released Per…".

c) The deputy authorizing the release of the hold shall complete an Impound Release Form, which shall be submitted to transcription and faxed or emailed to the Tow Lot.

3. Towed Vehicle Inspectors may release vehicles with "HOLDS" for proof of insurance, registration and proof of ownership and "HOLDS" for licensed drivers, only after the owner of the vehicle has provided proper documentation to clear the "HOLD".

a) The claiming party of an unregistered vehicle must provide current registration, or a bill of sale dated less than thirty (30) days from purchase, and proof of insurance before the vehicle can be released.

b) If a vehicle is impounded with fictitious plates, it must be registered, prior to release, regardless of the purchase date.

c) A valid driver's license is required to drive any vehicle from the impound lot. This applies to released vehicles and transportation vehicles.

4. Towed Vehicle Inspectors shall make a copy of all documentation used to clear a hold on an impounded vehicle. The copy shall be attached to the Tow/Impound form.

5. The Towed Vehicle Inspector must make a copy of the claiming party's identification and attach the copy to the Tow/Impound form along with any receipts and the tow bill.

6. If the owner of the vehicle is deceased, a family member may claim the impounded vehicle. The family member must have proper identification and the Towed Vehicle Inspector must confirm the owner's death. The Towed Vehicle Inspector shall also verify that the claiming party is a direct family member.

7. Lien holders who wish to claim an impounded vehicle must present the Towed Vehicle Inspector with the title to the vehicle in the lien holder's name, repossession paperwork, and sign a Hold Harmless Agreement. The Towed Vehicle Inspector shall also make a copy of the dealer's license, if the dealer is the lien holder, and a copy of the driver's license of the representative who is claiming the vehicle. All applicable copies shall be placed in the working file. The lien holder may supply an electronic verification of ownership to the impound lot.

8. Towed Vehicle Inspectors shall calculate all applicable fees including tow charges, mileage, administrative fees, winching fees, labor fees, storage fees, certified letter fees, and vehicle inspection fees prior to issuing a receipt.

a) If an impounded vehicle has been at the Impound Facility for five (5) consecutive days, a fee shall be collected to cover the cost of the certified letters sent to the last registered owner and lien holder.

b) A vehicle inspection fee shall be added to the bill for vehicles that have been checked by a Vehicle Title Inspector. Vehicles that have been at the tow lot for five (5) consecutive days, or longer, are to be inspected.

9. The Towed Vehicle Inspector shall fill out a receipt listing all applicable charges. The Towed Vehicle Inspector will collect the amount due from the claiming party and direct the claiming party to sign the receipt. If the

claiming party does not wish to sign the receipt, the Towed Vehicle Inspector will write in “refused to sign” and initial the receipt.

a) No checks shall be accepted at the Impound Facility unless the check is issued by the Insurance Auto Pool or an authorized tow company. The tow lot accepts cash, cashier’s checks, and credit cards.

10. No impounded vehicle may be towed or driven out of the tow lot unless the claiming party has paid the tow bill in full and has been issued a receipt, or a Division Commander has authorized the waiving of fees.

11. After the tow bill has been satisfied, the Towed Vehicle Inspector shall provide the keys and release the vehicle.

12. The Towed Vehicle Inspector shall attach all applicable paperwork to the original Tow/Impound form and place it back in the working file.

13. A copy of the tow receipt shall be attached to the tow bill and the Tow/Impound form located in the “billing” file.

14. At the end of each business day, the Towed Vehicle Inspector shall count all monies received and compared this amount to the tow bills and receipts and reconcile any discrepancies. All monies collected shall be deposited at the approved bank.

F. **Personal Property Release Procedures:** The Towed Vehicle Inspectors shall adhere to the following procedures when releasing property from a vehicle:

1. If a “HOLD” has been placed on the vehicle, the Division or Agency requesting the “HOLD” shall be contacted to authorize release of any personal property.

2. Personal property may be released to owners of impounded vehicles with no “HOLDS”. Personal property includes clothing, bags/luggage, paperwork, etc. This does not include any items requiring tools for removal, i.e. in-dash radio, tires and/or wheels, etc.

3. The Towed Vehicle Inspector shall monitor the vehicle owner during the property removal process.

4. The owner shall remove the property to the vehicle and return to the Impound Office. The Towed Vehicle Inspector shall record the property being released on a Property Release form. The owner shall sign the form and be provided a copy.

5. The owner shall sign the Property Release form and the Towed Vehicle Inspector shall provide the owner with a copy of the Property Release form listing the released property.

6. The original will be attached to the Tow/Impound form and placed in the "working" file.

7. Circumstances exist where property may be released to person(s) other than the owner of the impounded vehicle. Examples include: the vehicle owner's incarceration, death, hospitalization, and/or serious injury. In all examples, other than death and serious injury, Towed Vehicle Inspectors shall obtain written, notarized authorization from the owner of the impounded vehicle, directing the Towed Vehicle Inspector what specific items may be released. All property removed shall be documented as described above.

G. **Titling of Abandoned Vehicles:** In accordance with Nebraska State Statute 60-1903, the Sarpy County Sheriff's Office shall notify the last registered owner, if any, that an impounded vehicle has been determined to be abandoned, and that if unclaimed, it will be sold or offered at public auction. When a vehicle has been impounded five (5) consecutive days the following procedures shall be adhered to:

1. A certified letter shall be mailed to the last registered owner, lien holder, or mortgage holder in a timely manner. When two Towed Vehicle Inspectors are on duty, one shall bring the certified mail to the Sheriff's Office no later than 1500 hours so it may be placed in the outgoing daily mail for metering purposes. If only one Towed Vehicle Inspector is on duty for more than two days in a row, they shall contact the Desk Sergeant to advise on the status of the certified mail at the Impound Facility. The Desk Sergeant will then make the decision for delivery of the certified mail to the Sheriff's Office.

2. Application for title shall be made 30 days after the date the certified letter was mailed.

3. Impound Lot employees shall check VIN through NCJIS. Out of state vehicles require Impound Facility employees contact the VIN Inspector and provide the make, model, VIN, and license plate state and number. The VIN Inspector shall run the vehicle through NCIC and provide the owners name, as well as any lien holder for the vehicle.

4. The Desk Sergeant shall not apply for title to an abandoned vehicle at the Impound Facility until the VIN has been checked and a return service from the certified letter has been attached to the Application for Title.

5. The Desk Sergeant shall send the Application for Title to the County Clerk's office accompanied by an Odometer Statement on vehicles with an age of less than 10 years {N.R.S. 60-192-193}.

6. After title to an abandoned vehicle is provided to the Sheriff's Office, the vehicle may be sold at auction, or retained for county use.

7. It is the Assistant Court Services Commander or his or her designee's responsibility to determine whether or not an abandoned vehicle shall be retained for use, sold, or auctioned. Determining factors include the vehicles condition, scrap iron prices, cost of tow, and space at the Impound Facility.

8. If the abandoned vehicle is retained for use:

a) Publishing the intent to retain and use the vehicle shall be followed under Nebraska state statute 60-1903 section (4).

b) A Vehicle Retention form shall be completed for each vehicle and returned to the Front Desk Sergeant who will forward the information to the Sarpy County Clerk for posting in the public record.

H. **Auctioned Vehicles:** After the title to an abandoned is provided to the Sheriff's Office pursuant to Nebraska State Statute 60-1903, and it is determined by the Assistant Court Services Commander or his or her designee that the vehicle will be auctioned, the Towed Vehicle Inspector shall:

1. Any currency located in the vehicle shall be reported to the Desk Sergeant, receipted, and deposited in the Impound Facility account.

2. Property of value located in the vehicle shall be logged on a Tow Lot Personal Property Log with the agency case number and stored in the garage of the tow lot building until it can be sold at a property auction. Items without value shall be discarded.

3. The impounded vehicle shall then be moved to an area of the tow lot, designated by the Towed Vehicle Inspectors, utilized for vehicles to be auctioned.

4. Auctions of vehicles and property shall be held on an as needed basis. The Desk Sergeant shall determine when auctions are held.

5. Proceeds from all auctioned vehicles and property shall be receipted and deposited into the Impound Facility account.

I. **Emergency Procedures:** When an emergency situation (e.g. fire, injury, crime, etc.) occurs at the Impound Facility, the Desk Sergeant shall be notified as soon as possible. The following procedures shall be adhered to at the Impound Facility during emergency situations:

1. Tornado Warning: Time permitting, the Towed Vehicle Inspector shall secure the Impound Facility building and gate and proceed to the Noxious Weeds Building basement, located on the grounds of the Sarpy County Landfill.

2. Fire or Medical Emergency: The Towed Vehicle Inspector shall contact 911 and advise the location of fire or the nature of the medical emergency:

a) Fire extinguishers are located in the front office and utility room.

b) First aid supplies are located in the utility room of the Impound Facility.

c) An AED is located in the office hallway.

3. After Emergency: The Towed Vehicle Inspector shall conduct an inspection of the Impound Facility and determine if any damage occurred to the facility, fence, or gate and shall determine if any vehicles or property was damaged or is missing. The Desk Sergeant shall be notified of any damage or missing vehicles or property as soon as possible. If the Desk Sergeant is unavailable, the ADC shall be notified. The Towed Vehicle Inspector shall obtain a report # from Communications and submit an incident report to the Desk Sergeant.